

Terms and Conditions

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3. **Changes and Updates.** UHN and/or SRI reserve the right to update or change information contained in the App without prior notice or prior acceptance.

4. **Purpose of App.** You are using the App because you are enrolled in a research study that is looking at **remote monitoring for patients with COPD**. It is not a medical device and is not designed for use without the supervision of a trained medical practitioner. Nothing contained in the App should be construed, directly or indirectly, as the practice of medicine or providing medical advice or medical services by UHN or SRI. The App is not intended to diagnose, cure, mitigate, treat or prevent disease or other conditions.

5. **Not Medical Advice.** The App is not a substitute for professional medical advice, diagnosis or treatment. Never make changes to your medication, nor adjust your dose, without first consulting your health care provider. Always seek the advice of a physician or other qualified healthcare provider concerning questions you have regarding a medical condition, and before starting, stopping or modifying any treatment or medication. Never delay obtaining medical advice or disregard medical advice because of something you have or have not read on the App. If you have, or suspect you have, a health problem, or if you experience an adverse side effect, please consult your doctor. If you have, or suspect you are experiencing a health emergency, please call 911 and/or promptly visit a Hospital Emergency Department in your area.

6. **No Regulatory Approval.** The App has not been evaluated by Health Canada, the United States Food and Drug Administration (“USFDA”) or any other domestic or foreign regulatory agency and is not approved to diagnose, treat, cure or prevent any disease or for the prescription of any medication or treatment. While the information contained may be of use in other jurisdictions, these materials were provided and designed for use in Canada and you are solely responsible for ensuring suitability and permitted use in other jurisdictions.

7. **Contact Information.** If you have any questions about this EULA or any of its disclaimers or terms and conditions of use or general questions, please contact us using the contact information set out above.

8. **Express Consent to Receiving Electronic Messages from UHN and SRI.** By using the App, I hereby expressly consent to receiving electronic messages from UHN and SRI, including alerts and reminders, information, notifications, requests for your feedback, and other important communications from UHN and SRI and our programs and other UHN or SRI offerings.

C. COLLECTION OF DATA AND PRIVACY

1. Transmission of other, potentially identifying data to UHN and SRI.

We collect potentially identifiable data (which is transmitted back to us) through the App regarding the use of the App in order to better understand use of the App and to help us identify areas for improvement. If you do not consent to the transmission of this data to UHN or SRI, then you must not use the App. The research team may also use your contact information (phone or email) to share important information about the App and required updates with you.

Additional details about the data we collect can be found later on in this EULA.

2. Other Information Collected by the App

a. User Provided Information

The App collects the information about you which may be personal information and/or personal health information, and the details are described below.

When you register with us and use the App, you generally provide (a) your phone number; (b) information you enter into the App regarding your condition, which may include self-reported symptom information, audio recordings, vital signs, goals and other information; (c) information you share in the electronic messaging feature through the App to clinicians; and (d) information you provide us when you contact us for technical help with the App.

b. Automatically Collected Information

In addition, the App may collect certain information automatically, including, but not limited to, the type of mobile device you use, your

mobile device's unique device ID, the IP address of your mobile device, your mobile operating system, the type of mobile Internet browsers you use, and information about the way you use the App. This information is collected for analytics.

3. Third Party Access

Only aggregated, de-identified data is periodically transmitted to external services to help us improve the App. We will share your information with third parties only in the ways that are described in this privacy statement.

We may disclose User Provided and Automatically Collected Information:

- as required by law, such as to comply with a subpoena, or similar legal process;
- to any collaborators on the research study who have signed agreements to protect your information;
- to our trusted services providers who work on our behalf, and do not have any independent use of the information we share with them, and who have signed written agreements to protect your information and will act in compliance with the *Personal Health Information Protection Act, 2004* and any subsequent amendments.

4. Use of your Information by your Health Care Team

The information you enter into this App is accessible by your healthcare team and may become part of your medical record as determined by your healthcare team.

5. You can stop all collection of information by the App easily by uninstalling the App. You may use the standard uninstall processes as

may be available as part of your mobile device or via the mobile application marketplace or network.

6. Data Retention and Managing Your Information

UHN and Sunnybrook will retain User Provided data in accordance with the consent form you signed for participating in the research study.

7. Security

We are concerned about safeguarding the confidentiality of your information. We provide physical, electronic, and procedural safeguards to protect information we process and maintain.

For example, we limit access to this information to authorized employees and contractors who need to know that information in order to operate, develop or improve our App.

8. Privacy Contact

For more detailed information about who sees your information and about your choices contact the Privacy Office.

UHN Privacy Office:

Telephone: 416-340-4800 ext. 6937

Email: privacy@uhn.on.ca

Website: <http://www.uhn.ca/patient/privacy>

Sunnybrook Privacy Office

416-480-6100 ext. 61236

privacy@sunnybrook.ca

9. DISCLAIMER. The App TRANSMITS YOUR PERSONAL INFORMATION AND PERSONAL HEALTH INFORMATION OVER THE INTERNET.

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4. **Your Location.** You represent and warrant that you are not located in a country that is subject to a U.S. Government embargo, or that has been designated by the U.S. Government as a “terrorist supporting” country and that you are not listed on any U.S. Government list of prohibited or restricted parties.

5. **Third Party Terms.** You agree that you will comply with any applicable third-party terms of agreement when using the App.

6. **Enforcement.** You agree that Apple and Apple’s subsidiaries are third party beneficiaries of this EULA and that upon your acceptance of the terms and conditions of this EULA, Apple will have the right (and will be deemed to have accepted the right) to enforce this EULA against you as a third party beneficiary thereof.

[ALT Non-Apple Devices:

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E. Limitation of liability

In no event shall UHN or SRI, or their respective physicians, other qualified health care providers, officers, directors, employees, agents, licensors, and their respective successors and assigns be liable for any damages of any kind, including without limitation, any direct, special, indirect, punitive, incidental or consequential damages, and including without limitation any loss or damages in the nature of or relating to medical injury, personal injury, wrongful death, improper diagnosis, inaccurate information, improper treatment or any other loss incurred in connection with your use, misuse or reliance upon the App or the Content, or your inability to use the App, regardless of the cause and whether arising in contract (including fundamental the App), tort (including negligence), or otherwise. The foregoing limitation shall apply even if UHN or SRI knew of or ought to have known of the possibility of such damages.

F. Miscellaneous

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You agree that all matters relating to this Agreement, or your access or use of the App and its Content shall be governed by the laws of the Province of Ontario and the laws of Canada applicable therein, without regard to conflict of laws principles. You agree and hereby submit to the exclusive jurisdiction of the courts of the Province of Ontario with respect to all matters relating to your access and use of the App and the Content as well as any dispute that may arise therefrom

3. Waiver and Severability.

Any consent by UHN or SRI to, or waiver of, a breach of this Agreement which you have committed, whether express or implied, shall not constitute a consent to, or waiver of any other, different or subsequent breach. The invalidity or unenforceability of any provision of this Agreement or any covenant contained herein shall not affect the validity or enforceability of any other provision or covenant contained herein and any such invalid provision or covenant shall be deemed severable from the rest of the Agreement.

4. Entire Agreement.

This is the entire Agreement relating to your access and use of the App.

Research Participation

Users can only access the app through a specific setup arranged by the research teams. Before gaining access, you must complete the research consent form below with the research team. If you haven't completed it yet, please contact the research team at your site.

Study Consent Form – UHN

≡ 1 / 12 – 73% + [Icons: Document, Rotate, Erase, Undo, Redo, Lock, Download, Print, More]



Informed Consent Form for P

Study Title: A Program of Care in Chronic Obs
Pulmonary Rehabilitation, Integrated Care and I
Recent Exacerbation: Mixed-Methods Study on

Site Study Doctor: Dr. Robert Wu, Departmen

Site Study Contact: Alice Tu, Toronto General
416-340-4800 x5486

Sponsor/Funder(s): This study is partially fund
and Sunnybrook. Some home oscillometers hav

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